

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Squad #14	CCRB Case #: 201406581	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/25/2014 9:00 PM	Location of Incident: Outside § 87(2)(b)		18 Mo. SOL 12/25/2015		Precinct: 122
Date/Time CV Reported Thu, 06/26/2014 2:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/01/2014 2:59 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Gerard Delprete	01973	923749	NARCBSI
2. DT3 Michael Friedman	06423	920305	NARCBSI
3. An officer			NARCBSI
4. Officers			NARCBSI
5. POM Ted Holway	17428	941041	NARCBSI
6. DT3 Anthony Massoni	1823	943534	NARCBSI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Victor Bruno	01602	901239	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Anthony Massoni	Abuse: Det. Anthony Massoni facilitated the stop of § 87(2)(b)	A . Exonerated
B . DT3 Gerard Delprete	Discourtesy: Det. Gerard Delprete spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . DT3 Anthony Massoni	Abuse: Det. Anthony Massoni facilitated the frisk of § 87(2)(b)	C . Exonerated
D . DT3 Gerard Delprete	Abuse: Det. Gerard Delprete searched § 87(2)(b)	D . Exonerated
E . POM Ted Holway	Force: PO Ted Holway used physical force against § 87(2)(b)	E . Unfounded
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Exonerated
G . An officer	Force: An officer used a chokehold against § 87(2)(b)	G . Unfounded
H . An officer	Force: An officer restricted the breathing of § 87(2)(b)	H . Unfounded
I . POM Ted Holway	Discourtesy: PO Ted Holway spoke rudely to § 87(2)(b)	I . Unsubstantiated
J . DT3 Michael Friedman	Discourtesy: Det. Michael Friedman spoke rudely to § 87(2)(b)	J . Unsubstantiated

Case Summary

On June 25, 2014, at approximately 9 p.m., § 87(2)(b) was outside § 87(2)(b) in Staten Island and met with his friend, § 87(2)(b). There, § 87(2)(b) handed to § 87(2)(b) who was accompanied by § 87(2)(b) a napkin containing prescription medicine and then walked away. Soon thereafter, officers, identified via investigation as Det. Anthony Massoni, Det. Gerard Delprete, Det. Michael Friedman, PO Ted Holway, and Sgt. Victor Bruno, each from Narcotics Borough Staten Island, arrived at the scene and arrested § 87(2)(b) and § 87(2)(b) (**Allegation A**). During the arrest of § 87(2)(b) Det. Delprete allegedly stated, “Don’t fucking play with me” and “Get the fuck on the wall” (**Allegation B**). Soon thereafter, § 87(2)(b) was frisked and searched by officers, identified via investigation as Det. Massoni and Det. Delprete, who then reached into his pants and underwear (**Allegations C and D**). During the frisk, Det. Friedman allegedly “smacked” the buttocks of § 87(2)(b) § 87(2)(b) was in possession of heroin packaged into approximately fifty glassine envelopes which were concealed underneath his clothing and around his buttocks area. Multiple unidentified officers, along with PO Holway, then allegedly repeatedly punched and kicked § 87(2)(b) in the face, torso, back, and head (**Allegations E and F**). Thereafter, an unidentified officer allegedly wrapped his arm around the throat of § 87(2)(b) § 87(2)(b) from behind, causing § 87(2)(b)’s breathing to be restricted (**Allegation G and H**). Unidentified officers then allegedly continued punching and kicking § 87(2)(b) (**within Allegation F**). Thereafter, Det. Friedman and PO Holway allegedly called § 87(2)(b) § 87(2)(b) a piece of shit or stated, “You’re fucking with the wrong one” (**Allegations I and J**).

§ 87(2)(b) was arrested for § 87(2)(b) § 87(2)(b) and § 87(2)(b) were both arrested for § 87(2)(b) § 87(2)(b)

§ 87(2)(g) § 87(2)(g) § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation because § 87(2)(b) was arrested and sustained injuries as a result of this incident.
- On April 15, 2015, the undersigned investigator submitted to the New York City Office of the Comptroller an inquiry about the status of any potential notice of claim filed in regard to this incident. To date, no response has been received and any such response will be added to the case file upon its receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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§ 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has previously filed CCRB case number § 87(2)(b)
- Det. Massoni has been a member of the service for eight years and there are no substantiated CCRB allegations against him. § 87(2)(g)
- Det. Delprete has been a member of the service for fifteen years. The CCRB has previously substantiated three abuse of authority allegations against him. Det. Delprete has also been listed as the subject officer of two other discourtesy and three other search of person allegations, each of which was closed as unfounded, victim uncooperative, or unsubstantiated. (encl. B2-B4).
 - In CCRB case number 201205309, Det. Delprete was found to have improperly frisked and searched an individual and searched a vehicle, and the Board recommended that he receive a Charges. The administrative and disciplinary proceeding related to that case is still on-going.
- Det. Friedman has been a member of the service for seventeen years. The CCRB has previously substantiated one abuse of authority allegation against him. Det. Friedman has also been listed as the subject officer of two discourtesy and three search of person allegations, each of which was closed as unsubstantiated or exonerated. (encl. B5-B6).
 - In CCRB case number 200904268, Det. Friedman was found to have improperly searched a vehicle, and the Board recommended that he receive Charges. Det. Friedman eventually received Instructions from the NYPD.
- PO Holway has been a member of the service for nine years. The CCRB has previously substantiated one abuse of authority allegation against him. PO Holway has only been listed as the subject officer of one physical force and one discourtesy allegation, each of which was closed as complaint unavailable or unsubstantiated. (encl. B7).
 - In CCRB case number 201202113, PO Holway was found to have improperly stopped an individual, and the Board recommended that he receive Charges. PO Holway eventually received Instructions from the NYPD.

Potential Issues

- Contact attempts to § 87(2)(b) and § 87(2)(b) via phone and mail, were unsuccessful.
- On September 2, 2014, Inv. West submitted to IAB a letter requesting a copy of the IAB investigative file related to this incident. Receipt number 068/2014 was received for the request (encl. P1-P2). On April 15, 2015, the undersigned investigator contacted the IAB/CCRB Liaison, at which point he was informed that IAB was still investigating this incident. To date, the CCRB has not received the requested file. It should be noted that IAB does not provide IAB investigative files to the CCRB until their investigations are completed. As such, the requested file will be added to this case file upon its receipt.
- On February 24, 2015, the undersigned called § 87(2)(b) a security guard for the incident location who was working at the time of the incident. § 87(2)(b) provided a narrative of his observation of drug-related arrests, which he believed to be related to this incident, and also denied each of the allegations raised by § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

- At the time of his interview, § 87(2)(b) stated that his girlfriend, § 87(2)(b), witnessed the incident. However, § 87(2)(b) denied having witnessed the incident, but stated that she knew a person, § 87(2)(b) who was present. § 87(2)(b) was subsequently contacted for a statement.

§ 87(2)(g)

Medical Records

- § 87(2)(a) PHL § 18(6)

Police Documents

- The Narcotics Borough Staten Island Tactical Plan lists Sgt. Bruno, Det. Delprete, Det. Friedman, Det. Massoni, and PO Holway as members of the same team and on-duty at the time of the incident. No other officers are listed except for Det. Brooks and Det. Vaccarino, who are listed as having been assigned to the prisoner van, and three undercover officers. (encl. K1).
- The 120th Precinct command log lists that § 87(2)(b) arrived at the stationhouse at 10 p.m. and that his physical condition was apparently normal, § 87(2)(g)
- The arrest and criminal court complaint reports, filed by Det. Delprete, indicate that § 87(2)(b) was charged with § 87(2)(b)
The reports also indicate that § 87(2)(b) exchanged a quantity of a controlled substance for currency with another arrested individual, and that fifty-five glassines of heroin and an unspecified amount of oxycodone hydrochloride were found on him. The arrest report lists that no physical force was used. The criminal court complaint report lists that Det. Delprete recovered fifty-five glassines containing heroin from the waistband of § 87(2)(b) (encl. G4-G8).
- The arrest photographs of § 87(2)(b) show visible dark red spots on his right eyebrow area and what appears to be a laceration on his mouth (encl. D4).
- The medical treatment of prisoner report indicates that § 87(2)(b) complained of dizziness, had a minor cut to his mouth area, and had a slight cut to his upper right eye area. It also indicates that § 87(2)(b) resisted arrest. (encl. K14).

- The property vouchers and field test report filed by Det. Delprete for § 87(2)(b) list that heroin and \$63 in cash was recovered. No belt is listed as vouchered. (encl. K10-K13 and K18).
- The Event Summary sheet for the date of the incident, between 7:02 p.m. and 10:58 p.m., lists no incident or call for the incident location (encl. K16-K17).

Findings and Recommendations

Explanation of Subject Officers Identification

Det. Massoni admitted to making the observation of the narcotics transaction from which the arrests, and this incident, stemmed. § 87(2)(g)

§ 87(2)(b) provided a description of a subject officer, who cursed at him, which closely matches Det. Friedman. § 87(2)(b) also provided a description of another subject officer, who allegedly first punched him and later cursed at him, which closely matches Det. Massoni and PO Holway.

§ 87(2)(g)

§ 87(2)(b) also provided a description of the subject officer who first approached him with Det. Friedman and cursed at him, which closely matches Det. Delprete. § 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Allegation A – Abuse of Authority: Det. Anthony Massoni facilitated the stop of § 87(2)(b)

§ 87(2)(b)

Allegation C – Abuse of Authority: Det. Anthony Massoni facilitated the frisk of § 87(2)(b)

Allegation D – Abuse of Authority: Det. Gerard Delprete searched § 87(2)(b)

It is undisputed that § 87(2)(b) handed prescription pills to § 87(2)(b) prior to the stop or arrest.

§ 87(2)(b) stated that he handed a napkin containing prescription pills to § 87(2)(b) § 87(2)(b) denied having received currency from § 87(2)(b) as part of the exchange. § 87(2)(b) explained that officers subsequently approached him, informed him that he was under arrest, and placed him in handcuffs, at which point Det. Friedman frisked and searched him. § 87(2)(b) added that Det. Friedman reached into his pants and underwear and attempted to pull out a package containing approximately fifty glassines of heroin, which he had clenched between his buttocks, but not inside his rectum. § 87(2)(b) explained that the narcotics were for personal use. (encl. D1-D5).

§ 87(2)(b) observed § 87(2)(b) and § 87(2)(b) walk together to a truck. § 87(2)(b) did not witness any interaction between § 87(2)(b) and § 87(2)(b). However, § 87(2)(b) was approximately eighty feet away from § 87(2)(b) at that point and his view was partially obstructed. § 87(2)(b) did not know what occurred between § 87(2)(b) and the person inside the truck. § 87(2)(b) was informed by unidentified bystanders nearby him that § 87(2)(b) and § 87(2)(b) were conducting a narcotics transaction. § 87(2)(b) stated that he then walked closer to § 87(2)(b) and observed his interaction with the officers. § 87(2)(b) corroborated that the pants of § 87(2)(b) dropped partially past his buttocks and that an officer reached into his pants. (encl. E1-E5).

Officer statements indicate that Det. Massoni was the only officer who observed the transaction. Det. Massoni stated that he observed § 87(2)(b) hand an unidentified object to § 87(2)(b) in exchange for currency. Det. Massoni added that, while in plainclothes, he approached § 87(2)(b) and observed pills in plain view held in his hands, which he recognized as prescription medicine commonly trafficked. (encl. F1-F6, G1-G11, H1-H5, I1-I6, and J1-J5).

Property vouchers and field test report filed for § 87(2)(b) list that he was in possession of \$63 in cash, in addition to heroin, at the time of the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

According to People v. Jones, 90 N.Y.2d 835, the exchange of currency for an unidentified object in a drug-prone location that is observed by an experienced officer is sufficient to give probable cause that a narcotics transaction has occurred (encl. A1-A2).

Additionally, Patrol Guide Procedure 208-05 indicates that, for safety purposes, officers are allowed to frisk and search an arrestee on the field. It adds that “a thorough external body examination is made by sliding the hand over the subject’s body, feeling for weapons or other objects, with special attention to the waistband, armpit, collar, and groin areas.” Furthermore, it indicates that, during such a frisk or search, “if an unusual object is detected, the officer will reach into or under the clothing to remove it.” (encl. A3-A5).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, C, and D** be closed as **exonerated**.

Allegation B - Discourtesy: Det. Gerard Delprete spoke rudely to § 87(2)(b)

Allegation I – Discourtesy: PO Ted Holway spoke rudely to § 87(2)(b)

Allegation J – Discourtesy: Det. Michael Friedman spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that Det. Delprete stated to him, “Don’t fucking play with me,” and “Get the fuck on the wall.” § 87(2)(b) also alleged that Det. Friedman and PO Holway later called him a “piece of shit” and stated to him, “You’re fucking with the wrong one.” (encl. D1-D5).

§ 87(2)(b) stated that he could not hear the conversation between § 87(2)(b) and the officers (encl. E1-E5).

All attempts to contact or interview potential witnesses were unsuccessful.

Each of the officers interviewed denied having made each of the above-alleged discourteous remarks, or denied having heard any officer make any of those remarks (encl. F1-F6, G1-G11, H1-H5, I1-I6, and J1-J5).

§ 87(2)(g)

As such, it is recommended that **Allegations B, I, and J** be closed as **unsubstantiated**.

Allegation E - Force: PO Ted Holway used physical force against § 87(2)(b)

§ 87(2)(b) stated that, while he was still standing up and being searched, he resisted the removal of the narcotics from his person, solely by tightening his buttocks, and that PO Holway then punched him in the mouth. § 87(2)(b) did not know how many times PO Holway punched him.

§ 87(2)(b) stated that he observed the officers first converse with § 87(2)(b) and that he then approached them. § 87(2)(b) stated that, afterward, the officers grabbed § 87(2)(b) and threw him down to the ground. § 87(2)(b) stated that he did not observe the officers use any additional force against § 87(2)(b).

PO Holway denied having punched § 87(2)(b) and each of the additional officers interviewed denied having observed him do so.

§ 87(2)(g)

. As such, it is recommended that **Allegation E** be closed as **unfounded**.

Allegation F – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that, after he was punched by PO Holway, multiple unidentified officers repeatedly punched him in the face and kicked him. § 87(2)(b) was still standing up during that time and he denied having resisted other than by tightening his buttocks. § 87(2)(b) did not know which officers used the force alleged here. § 87(2)(b) added that he eventually fell down to the ground, where the officers continued punching him and kicking him. § 87(2)(b) stated that he was kicked in the lower back, back of the head, right side of his face, and on one of his sides. § 87(2)(b) did not further specify when he was kicked in each of those areas. § 87(2)(b) shut his eyes during the use of the alleged force due to pain. (encl. D1-D5).

§ 87(2)(b) stated that he first observed § 87(2)(b) converse with the officers. § 87(2)(b) added that he then witnessed officers grab the arms and back of the neck of § 87(2)(b). § 87(2)(b) explained that the officers struggled with § 87(2)(b) who was moving his body around, and eventually threw him down to the ground. § 87(2)(b) added that § 87(2)(b) fell face down and was then restrained against the ground. § 87(2)(b) also stated that he did not observe the officers use any additional force. However, § 87(2)(b) stated that, after § 87(2)(b) was brought down, he momentarily looked away from the incident and then looked back at it, only to observe § 87(2)(b) being pulled up from the ground. (encl. E1-E5).

Each of the officers interviewed denied having punched or kicked § 87(2)(b) or having observed any officer do so (encl. F1-F6, G1-G11, H1-H5, I1-I6, and J1-J5).

§ 87(2)(a) PHL § 18(6)

According to Patrol Guide Procedure, 203-11 (encl. A6-A7), only that amount of force necessary to overcome resistance will be used to effect an arrest, or to take an emotionally disturbed person into custody.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. As such, it is recommended that **Allegation F** be closed as **exonerated**.

Allegation G – Force: An officer used a chokehold against § 87(2)(b)

Allegation H – Force: An officer restricted the breathing of § 87(2)(b)

§ 87(2)(b) explained that an officer wrapped an arm around his neck, while standing behind him, and applied pressure against the front of his neck for approximately thirty seconds. § 87(2)(b) further explained that he could not breathe during that time. § 87(2)(b) did not see which officer placed him a chokehold. § 87(2)(b) added that he was later brought down to the ground. (encl. D1-D5).

§ 87(2)(b) stated that, after he had already walked closer to § 87(2)(b) and the officers, he witnessed officers grab the arms and back of the neck of § 87(2)(b) and then throw him down to the ground. § 87(2)(b) stated that he did not observe the officers use any additional force. (encl. E1-E5).

Each of the officers interviewed denied having placed § 87(2)(b) in the alleged chokehold, or denied having observed any officer do so (encl. F1-F6, G1-G11, H1-H5, I1-I6, and J1-J5).

§ 87(2)(g)

. As such, it is recommended that **Allegations G and H** be closed as **unfounded**.

Team: 3

Investigator: _____
Signature Print Date

Keyne Jean Villert

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date